LAST TAGUMA SAURAMBA
versus
GERALD NEVILLE NAIDOO
and
RAYMOND TREVOR NAIDOO
and
DEANNA MOONEN MAKAN
and
KATHLEEN FAITH WERRETT
and
RHEYANA ESME MOODLEY
and
THE REGISTRAR OF DEEDS N.O.

HIGH COURT OF ZIMBABWE
MUSITHU J
HARARE: 11, 12 September 2025 & 29 January 2026

Civil Trial- Absolution from the instance

Mr B. Mudhau, for the plaintiff
Mr B.T. Mudhara, for the 1st-5th defendants

MUSITHU J:

1. The plaintiff approached this court with a claim for declaratory relief arising from a contractual dispute involving the sale of an immovable property. The nature of the relief sought was set out in the summons and declaration as follows:

(a) The agreement or contract of sale entered into between Plaintiff and first to fifth defendants in May 2018 in respect of Stand 118 Sinoa Township, Chinhoyi held under Deed of Transfer No 3739/90 also known as Stand 118 North Drive Way, Chinhoyi is valid and binding on first to fifth defendants for all intents and purposes.
(b) Payment of ZWL$55 000.00 to first up to fifth defendants shall constitute full and final payment of the agreed purchase price for the property mentioned in paragraph (a) above.
(c) The purported withdrawal of the contract of sale of 10 November 2019 and subsequent offer of 20 August 2020 be and are hereby declared null and void.
(d) The 1st to 5th defendants be and are hereby compelled to sign all documents that need to be signed to facilitate transfer of title of the property described in paragraph (a) above from their names to that of the plaintiff.
(e) Should first to fifth Defendants fail to act as ordered in paragraph (d) above within five (5) days of the court order being served on them or their representative, the

Sheriff of Zimbabwe or his lawful Deputy be and is hereby ordered to sign all such documents that may need to be signed by first to fifth Defendants, to give effect to the order as contained in paragraph (d) above.

(f) The sixth Defendant be and is hereby compelled to process the transfer of title of the above mentioned property in paragraph (a) above from first to fifth defendants to the Plaintiff.

(g) That first to fifth defendants jointly and severally and in solidum the one paying the others to be absolved pay costs of suit on an attorney -client scale.

(h) Alternatively, the first to fifth defendants in lieu of specific performance, pay damages for breach of contract which amount is equivalent to the purchase price of a comparable property as Stand 118 Sinoa Township, at the time of breach.

Background to the Plaintiff's Claim

2. The claim was motivated on the following bases. On 1 December 2013, the plaintiff and the first to fifth defendants (collectively referred to as the defendants) entered into a lease agreement in respect of a property known as Stand 118 Sinoa Township, Chinhoyi, also known as Stand 118 North Drive Way, Chinhoyi (the property). The defendants hold title in the property under Deed of Transfer 3739/90.

3. Between 20 April 2013 and 8 May 2015, the defendants expressed an intention to sell the property and invited bids from prospective buyers including the plaintiff. The defendants appointed the first defendant as their representative in the disposal of the property.

4. The plaintiff submitted a bid for US$50,000.00. He was informed by a representative of the defendants, one Rachael Dube, that the defendants had resolved to sell the property to him for US$55, 000.00. That position was also confirmed by the first defendant in an mail in which he set out the conditions of the sale as follows:

a) That as a sign of good faith the plaintiff would clear all arrear rentals and settle outstanding rates with the Municipality of Chinhoyi;

b) The plaintiff was to present the confirmation of funding of the purchase price of US$55,000.00.

c) The defendants would thereafter arrange for a formal agreement of sale to be prepared by their legal practitioners, and a deposit of US$5, 500.00 would become payable on the signing of the agreement of sale.

5. The plaintiff accepted the proposed terms and complied with conditions (a) and (b) above. He communicated his acceptance to the first defendant via email on 25 October 2016. The plaintiff also submitted a copy of his national identity card, and a copy of his

driver's licence for purposes of having an agreement of sale prepared. This was done through an email of 15 December 2016.

6. Nothing further materialised, prompting the plaintiff to raise a complaint through an email of 16 April 2018 addressed to the first defendant. The first defendant responded to the complaint through an email of 18 April 2018. He attributed any delays to miscommunication and asked the plaintiff to sign the agreement of sale as well pay a 10% deposit (US$5,500.00) by 16 May 2018.

7. The first defendant made a follow up on the disposal of the property on 7 May 2018, and the plaintiff explained to him the steps that had been taken to formalise the agreement of sale on 17 May 2018. The agreement of sale could not be signed on 17 May 2018 because Rachael Dube, the defendants' representative was unavailable. The first defendant acknowledged this position in an email dated 20 May 2018.

8. The agreement of sale was prepared by the defendants' legal practitioners in May 2018, and a copy was forwarded to the plaintiff for information purposes. The agreement of sale recorded the following:

a) That the purchase price was US$55, 000.00
b) That a deposit of US$5, 500.00 was to be paid into Chamutsa & Partners Trust Account on or before 31 May 2018.
c) The balance of US$49, 500.00 was to be paid within two (2) calendar months from July 2018 (on or before September 2018).

9. The plaintiff was informed that the draft agreement would be sent to the defendants for their information and input as they were all based outside the country. The plaintiff made several follow ups with the defendants' legal practitioners about the signing of the agreement of sale but nothing materialised. In July 2019, the plaintiff received communication advising him of an increase in the rental for the property. He sought clarity on the fate of the agreement of sale. The first defendant informed him that the property was no longer available for sale for reasons that were not disclosed to the plaintiff.

10. Through their lawyers, the defendants served the plaintiff with a letter in which they gave the plaintiff an option to purchase the property by 30 September 2020, for the sum of US$55,000.00. The offer was on the same terms and conditions as set out in the draft agreement that was yet to be signed. The plaintiff rejected the proposal. His contention was that he entered into an agreement of sale for the property with the defendants for

US$55,000.00. The fact that it was not reduced to writing did not affect the parties' legal rights. That agreement of sale was never validly cancelled by the defendants.

11. The plaintiff argued that the defendants should be held to the terms of the agreement of sale that they entered with the plaintiff. The purported withdrawal of the agreement of sale on 10 November 2019 was a nullity at law. The plaintiff also argued that the agreed purchase price of US$55, 000.00 metamorphosed to ZWL$55,000.00 by operation of law. The amount of ZWL$55, 000.00 tendered as the purchase price was therefore in full and final payment of the purchase price.

12. The defendants' attempt to re-offer the property for sale in their letter of 20 August 2020 was intended to circumvent the law which transformed the purchase price to Zimbabwe dollars instead of the United States dollar. The plaintiff was willing and prepared to perform his obligations by paying the whole amount in local currency as required by law against the transfer of the property into his name.

13. In the alternative, if specific performance of the contract was no longer possible, the plaintiff was entitled to claim damages of an amount equivalent to the purchase price of a comparable immovable property at the time of the breach.

The Defendants' Plea

14. The defendants raised the issue of prescription as a preliminary point. They averred that the plaintiff's claim had prescribed since the agreement of sale that found the cause of action was allegedly consummated in May 2018.

15. On the merits, the defendants denied that they appointed the first defendant or Rachael Dube as their representative in the alleged transaction. Further, while accepting that the plaintiff made an offer of US$55,000.00, the defendants averred that they informed the plaintiff that they would consider his offer subject to the plaintiff showing good faith through the signing of an agreement of sale and payment of a deposit of US$5, 500.00 to the defendants' legal practitioners. The plaintiff never accepted the offer as proposed, and no agreement came into effect.

16. The defendants denied that an agreement of sale was ever concluded with the plaintiff. The series of documents and emails exchanged between the parties did not demonstrate that an agreement of sale was concluded. These merely demonstrated that negotiations were held with a view to reaching an agreement, which never materialised. Negotiations that were held with a view to concluding an agreement of sale should not be mistaken to

mean that an agreement was subsequently. In any event, the plaintiff failed to pay the deposit of US$5,500.00 and no agreement of sale was signed by the parties.

17. A draft of the agreement of sale was prepared but was not signed. No rights could accrue from an agreement which was not assented to by the parties. No agreement could have been concluded if the plaintiff was disputing the original terms of the proposed agreement. The plaintiff could not relate to the cancellation of an agreement that was never concluded by the parties. The plaintiff could not seek a *declaratur* in respect of an agreement that never came into effect.

18. It was further averred that the plaintiff could not seek any damages when he never suffered any loss. The court was urged to dismiss the claim with costs on the legal practitioner and client scale since it was an abuse of court process.

The Issues

19. The matter was referred to trial on the following issues:

- Whether or not the plaintiff's claim had prescribed.
- Whether or not the parties entered into a binding and valid contract of sale in respect of Stand No. 118 Sinoia Township, Chinhoyi.
- Whether or not plaintiff is entitled to specific performance of the contract of sale in respect of Stand No 11 Sinoia Township, Chinhoyi.
- If specific performance is not available as a remedy whether or not the plaintiff is entitled to the alternative relief of damages equivalent to the purchase price of a comparable property as Stand No 118 Sinoia Township, Chinhoyi.

The Trial

The Evidence of Last Taguma Sauramba

20. He is the plaintiff. He testified as the sole witness. Part of his evidence was summarised in the background above. The rest of his evidence was as follows. He is employed by the Rural Electrification Fund as the Head of Electrical Engineering, Mashonaland West Province. He made a bid for the property in the sum of US$50,000.00 through an email that he wrote to the first defendant on 20 April 2015. The defendants made a counteroffer of US$55,000.00. The plaintiff was also required to pay a deposit of US$5,500.00 before the signing of the agreement of sale. He expressed reservations about making any payment before signing an agreement of sale.

21. He agreed with the first defendant that he would submit proof of the availability of funds for the purchase of the process. They also agreed that the deposit of US$5, 500.00 would

be paid on the signing of the agreement of sale. The plaintiff approached the Zimbabwe Electricity Supply Authority Staff Pension Funds (the Pension Fund), and he was issued with a commitment letter. The commitment letter dated 26 October 2016, confirmed that the plaintiff was eligible for funding from the Pension Fund in the sum of US$60,000.00.

22. After forwarding the commitment letter to the defendants, the plaintiff received a call from a legal practitioner in the employ of Mundia & Mudhara legal practitioners, by the name B Masawi, requesting his identification particulars and evidence confirming that the parties had reached agreement for the sale of the property. The information was forwarded to the said legal practitioner through an email of 15 December 2016.

23. The plaintiff secured the funds required for the deposit through a loan that he obtained from Stanbic Bank, Belgravia, Branch, Harare. He applied for the loan on 4 April 2017 and managed to secure an amount of US$30,000.00. Part of the loan was supposed to go towards the purchase price of the property. An amount of US$29,100.00 was deposited into his bank account after deducting loan charges. A bank statement from Stanbic Bank which was tendered as an exhibit confirmed that a loan disbursement of US$29,100.00 was made into the plaintiff's bank account on 27 April 2017.

24. Regarding the claim for damages, the plaintiff justified it on the basis that the loan he secured from the bank attracted interest. The delay by the defendants in fulfilling their contractual obligations meant that he continued to incur interest on the loan amount. At the time that he secured the loan, he could have bought a house of his own using the proceeds. A valuation conducted on the property showed that its fair value was US$85,000.00, while the forced sale value was US$59,500.00. The plaintiff was therefore claiming the sum of US$85,000.00 in lieu of specific performance.

25. The plaintiff also averred that his pension was affected by Statutory Instrument 33 of 2019[1], which caused currency changes thereby eroding its value. He could have bought a house from the pension proceeds. He blamed the defendants' evasiveness for his failure to pay for the house since he had the funds to discharge that obligation.

26. On 16 April 2018, the plaintiff wrote an email to the first defendant, in which he referred to a meeting held on 10 April 2018 between himself, his wife, Rachael Dube and a legal practitioner called Chamutsa. At that meeting, the plaintiff and his wife were informed

[1] Presidential Powers (Temporary Measures) (Amendment of Reserve Bank of Zimbabwe Act and Issue of Real Time Gross Settlement Electronic Dollars (RTGS Dollars)) Regulations, 2019

that the defendants wanted to withdraw from the transaction, but no reasons were given for that decision.

27. The email of 16 April 2018 concluded with a request to the defendants to finalise the sale process within 30 days from the date of the email, failing which the plaintiff would evoke available remedies to protect his interests. The email elicited a response from the first defendant in which the plaintiff was blamed for the delays in consummating the agreement of sale. In the email dated 18 April 2018, the first defendant requested the plaintiff to arrange for the signing of the agreement of sale with Mr Chamutsa as soon as possible. The email also directed the plaintiff to pay the 10% deposit by 16 May 2018, failing which the defendants reserved their right to reconsider their position, which would include the cancellation of the 'implied agreement'.

28. The plaintiff argued that the defendants would not have made reference to the cancellation of the agreement of sale if there was none in the first place. Further, the plaintiff insisted that he was legally required to pay the purchase price in local currency by operation of SI 33/2019. This was because the agreement came into operation in May 2018 before the said instrument became law. The draft agreement was prepared and discussed between the plaintiff and Rachael Dube and Mr Chamutsa who were representing the defendants.

29. The draft agreement listed the five defendants as the sellers. It was not signed because the national identity numbers of the defendants were missing. The plaintiff had already supplied his own identity particulars. The plaintiff averred that the mere fact that the agreement was not signed did not mean that there was no agreement between the parties. The parties had agreed on the terms of the agreement, but the defendants failed to fulfil their end of the bargain. The defendants had not furnished the plaintiff with details of the account number into which he could deposit the funds.

30. The plaintiff denied that his claim had prescribed as alleged by the defendants. He approached the court after the first defendant sent him an email on 10 November 2019 advising of the defendants' decision to withdraw from the sale. That email confirmed that there was indeed an agreement which the defendants sought to cancel unlawfully.

The application for absolution from the instance

31. The application was premised on the averment that the plaintiff failed to establish a valid cause of action as well as prove the damages that were being claimed. The plaintiff was offered an opportunity to buy the property as a sitting tenant. Following some back and

forth, the parties agreed on a purchase price of US$55,000.00. The plaintiff was also required to pay a refundable deposit of US$5,500.00.

32. The agreement of sale was never signed. The parties traded accusations on what exactly caused the agreement not to be signed. The plaintiff did not pay the agreed deposit. The defendants argued that the plaintiff could have signed the agreement but chose not to. The plaintiff wanted the agreement in writing so that he could approach the Pension Fund for a loan facility. The agreement had to be signed before he paid a deposit. The first defendant instructed the plaintiff to sign and pay the deposit at the same time.

33. The defendants averred that they ought to be absolved from the instance because the plaintiff's claim had prescribed. The alleged cause of action arose in May 2018, and more than three years had lapsed when defendants were served with summons. The cause of action was the alleged agreement of sale which was entered into in May 2018. It was not the alleged cancellation of the agreement of sale which gave rights to the plaintiff, but the agreement itself. The claim was therefore prescribed in terms of s15(d) of the Prescription Act [*Chapter 8:11*]

34. It was also argued that there was no valid agreement between the parties. Plaintiff alleged that he entered into a verbal agreement with the defendants duly represented by the first defendant and Rachael Dube. The plaintiff never had any contact with the other four defendants. Nothing was placed before the court to confirm that Rachael Dube was indeed authorised to represent the defendants. No power of attorney was produced to confirm the agency relationship.

35. Relying on the author RH Christie Business Law in Zimbabwe[2], the defendants defined a contract of sale as one in which a person promised to deliver a thing to another who on his part promised to pay a certain price. There was no evidence of a meeting of the minds between the plaintiff and the defendants. The onus was on the plaintiff to prove the existence of an agreement of sale between him and the five defendants. He failed to do that.

36. The defendants further averred that should the court find that there was a verbal agreement between the parties, the defendants argued that there was still no valid agreement of sale because the arrangement between the parties was subject to a condition precedent. An agreement of sale that was subject to an unfulfilled condition precedent

[2] Juta & Company 1998 p141

was not a valid sale. *Sithole v Khumalo & Ors* HB 28/08. The plaintiff and first defendant agreed on the property and the purchase price, but no payment was made because that would only happen on the signing of the agreement.

37. The condition precedent was not satisfied and therefore no contract came into existence. Fulfilment of the condition precedent would have operationalised the contract. The plaintiff failed to perform by paying the US$5,500.00 even when he was asked to make a payment into Mr Chamutsa's account. There was no proof that he tendered the payment at all. He could not seek specific performance when he himself failed to perform his obligations in terms of the alleged agreement.

38. It was further submitted that even assuming that there was an agreement, it was trite that the right to seek specific performance was predicated on the principle that the party claiming it must first show that he or she had performed his or her obligations under the contract, or was ready, willing and able to perform his or her side of the bargain. The court was referred to the case of *Grandwell Holdings (Private) Limited v Zimbabwe Mining Development Corporation, Marange Resources (Private) Limited and Mbada Diamonds (Private) Limited*.[3] The plaintiff failed to pay the purchase price or the 10% deposit. Having failed to do that, he could not claim an order of specific performance against the defendants.

39. It was also submitted that the parties were now in a situation of impossibility. The performance that the plaintiff was seeking was impossible as he sought an order which permitted to receive transfer against payment of RTGS$55,000.00. Section 2 of SI 60 of 2024 which amended s 44D of the Reserve Bank of Zimbabwe Act [*Chapter 22:15*], introduced the Zimbabwe Gold Currency which replaced the RTGS currency. The RTGS currency was no longer legal tender, and even at the time of instituting proceedings, the sum of RTGS$55,000.00 had lost value and could not even buy a pair of shoes. A court of law could grant an order which was impossible of performance, and which amounted to unjust enrichment.

40. It was also argued that the plaintiff had not quantified the damages that he allegedly suffered. He had failed to establish any causal nexus between the defendant's actions and the alleged loss. No basis for claiming the damages had been placed before the court. His

[3] SC 5/20

claim was therefore vague and embarrassing. The plaintiff had failed to establish a *prima facie* case.

The Plaintiff's Submissions

41. In response, the plaintiff submitted that the question that the court must decide was whether the plaintiff had established a *prima facie* case which needed to be controverted in evidence by the defendants before relief sought could be granted. The plaintiff averred that the evidence led on his behalf was such that the court could reasonably, applying its mind to the matter find in his favour.

42. The plaintiff further averred that he had managed to prove that he entered into an agreement of sale with the defendants in respect of the property. The essential requirements of a contract of sale had been proved to exist. Reliance was placed on the case of *Falyn Investments (Pvt) Ltd v Thema & Anor*[4], where it was held that the essential requirements of a contract of sale were: the agreement (*consensus ad idem* or a meeting of the minds); the subject matter of the sale (the *merx*) and the purchase price (the *pretium*).

43. The plaintiff submitted that he had, through evidence, demonstrated that the parties were *ad idem* regarding the property to be sold and the purchase price thereof. The parties were also *ad idem* as regards the terms of the agreement. The defendants had through the first defendant, confessed that that they wanted to cancel the agreement between the parties. It was anomalous for a party to threaten to cancel an agreement of sale which did not exist.

44. The plaintiff dismissed the defendant's contention that there was no agreement because the draft agreement was never signed. He submitted that the signing of an agreement of sale was a mere formality and not proof of its existence. The evidence led by the plaintiff pointed to the existence of an agreement of sale.

45. The plaintiff also dismissed the defendant's contention that there was no agreement by reason of the plaintiff's failure to pay the purchase price. The payment of the purchase price was not a requirement to prove the existence of an agreement of sale. Payment of the purchase price was concerned with the operationalisation of the agreement of sale. It was not one of the issues that the court considered in deciding whether there existed an agreement of sale or not.

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[4] HH 272/23. See also *Mudhanda v Nan Brooker & Anor* HH 637/15

46. The plaintiff also dismissed the defendant's related argument of the non-fulfilment of the alleged condition precedent concerning the payment of the US$5,500.00 deposit. The payment of the said deposit was not a condition precedent to the signing of the agreement. Evidence had established that the deposit was to be paid after the signing of the agreement of sale.[5]

47. The plaintiff averred that at any rate, it was the defendants who failed to provide their personal details to their legal practitioners after the plaintiff had provided his at the request of the defendants' legal practitioners. Evidence also demonstrated that the defendants had **fictionally fulfilled** the alleged conditions by failing to provide the plaintiff with the agreement of sale to enable him to sign it even after numerous requests. The defendants also failed to provide the plaintiff with their account details to enable him to deposit funds even after being requested to do so. The position of the law was that where contractual terms and conditions were fictionally fulfilled, the law would deem such conditions to have been fulfilled[6].

48. The plaintiff also provided confirmation of funding within two days of being requested to do so by the defendants[7]. Having demonstrated that there existed an agreement of sale between the parties, the next issue for determination was concerned with the remedies available to the plaintiff. Specific performance was the primary remedy for breach of contract[8].

49. The defendants breached the agreement by threatening to cancel the agreement between the parties through an email of **10 November 2019**, and by reoffering to sell the property to the plaintiff. This alone was a breach of the agreement which entitled the plaintiff to the relief that he sought. Specific performance was granted not only to a party who had performed his side of the bargain, but to a party who was ready, able and willing to perform his side of the contract.[9] The plaintiff had demonstrated that he was ready and willing to perform his side of the contract.

50. As regards the defendant's submission that the claim had prescribed, the plaintiff submitted that the onus was on the defendants to demonstrate that the claim had indeed prescribed. The onus was an evidentiary one that could only be discharged through the

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[5] Email of 23 October 2016 from the first defendant to the plaintiff on p 149 of the record.
[6] *Morris & Anor v Kambadzi & Anor* 1992 (1) ZLR 61 (HC)
[7] Page 62 of the record.
[8] *Grandwell Holdings (Pvt) Ltd v Zimbabwe Mining Development Corporation & Ors* SC 5/20.
[9] *Chiarelli v Bouna Inv. (Pvt) Ltd* [2015] ZWHHC 678

leading of evidence[10]. The point on prescription could not be upheld unless the defendants led evidence. That could only be done if they were put to their defence. The plaintiff's cause of action was that there was a valid and binding agreement between the parties, which was purportedly cancelled by the defendants on 10 November 2019. That was the relevant date when the cause of action arose for the declaration of the validity of the agreement. It was the date when the debt became due for purposes of prescription.

51. Besides, at the time the defendants entered into the agreement of sale with the plaintiff up to the time they unlawfully cancelled it, they were based outside Zimbabwe. In terms of s 17(1)(c) of the Prescription Act [*Chapter 8:11*], prescription did not run when the debtor was outside the country.

52. The plaintiff further submitted that the argument on prescription defeated the defendants' entire case that there was no agreement between the parties. The nature of the special plea of prescription was such that it precluded a party from denying what was alleged by the plaintiff. A litigant raising the defence of prescription admitted that there was indeed a valid cause of action by the plaintiff which could not be enforced by reason that the claim was stale. There could not be a special plea of prescription where the cause of action was denied.

53. The plaintiff also argued that there was clear evidence that the defendants authorised Rachael Dube and the first defendant to act on their behalf in the transaction. The argument that neither the first defendant nor Rachael Dube had authority to sell the property on behalf of the defendants was misplaced.

54. The plaintiff denied that the agreement was incapable of performance because the RTGS currency was no longer legal tender. The plaintiff argued that it was possible to effect payment that was equivalent to the purchase price of RTGS55, 000.00.

55. As regards the alternative claim for damages, the plaintiff averred that there was a clear nexus between the defendants' conduct and the damages claimed. The plaintiff lost on opportunities to purchase other properties of the same value. His savings were wiped out by inflation following the promulgation of S.I. 33/19. Plaintiff had to borrow from his bankers with the intention of paying the deposit as well as his legal practitioners. Evidence led confirmed that the plaintiff was claiming US$85,000.00 as the fair market value of the property. That evidence had not been challenged at all.

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[10] *Brooker v Mudhanda & Anor* SC 05/18

Analysis

56. An application for absolution invariably places the court in an unpleasant position because the court is required to seal the plaintiff's fate without hearing the defendant's side. Courts have been implored to exercise caution when faced with applications of this nature. Authors *Herbstein & Van Winsen:*[11] have had to say:

> "In view of the principles set out above, it is clear that a trial court should be extremely chary of granting absolution at the close of the plaintiff's case. In deciding whether or not absolution should be granted, the court must assume that in the absence of very special considerations, such as the inherent unacceptability of the evidence adduced, the evidence is true. The court should not at this stage evaluate and reject the plaintiff's evidence. The test to be applied is not whether the evidence led by the plaintiff establishes what will finally have to be established. When the plaintiff relies on an inference the court will refuse the application for absolution unless it is satisfied that no reasonable court can draw the inference for which the plaintiff contends. A court may grant absolution from the instance at the close of a plaintiff's case if the plaintiff has failed to establish an essential element of the claim even though the defendant could have succeeded on exception or by way of special plea had the issue been raised by either procedure…"[12] (Underlining for emphasis)

57. All that is expected of a plaintiff at this stage is to place before the court, evidence which a court applying its mind reasonably, may find in his favour. The defendant on the other hand must poke holes in the plaintiff's case and demonstrate that the claim is hopelessly devoid of merit so much that it will be an exercise in futility for the court to even proceed to hear the defendant's case.

58. I must dispose of the issue of the prescription of the plaintiff's claim that the defendant raised in the context of the application for absolution. The onus was on the defendant to place evidence which demonstrated that the claim had become stale through effluxion of time. In *Jennifer Nan Brooker v Mudhanda & Another*[13], GOWORA JA (as she was then), made the following pertinent observations on a special plea of prescription:

> 'It can therefore be accepted as settled that evidence is necessary when disposing of a matter in which a special plea of prescription is raised. The rationale behind this is that where a party raises a special plea as a defence, new facts arise and because of the introduction of fresh facts which did not appear in the declaration, there is need for a court to hear the evidence of the parties where facts are disputed before making a ruling on the plea.
> In *casu*, the court *a quo* disposed of the matter in the absence of such evidence. Clearly, a dispute of fact as to when the cause of action arose was evident from the special plea and this could only have been resolved through *viva voce* evidence." (Underlining for emphasis).

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[11] *The Civil Practice of the High Courts of South Africa*, 5th Edition, Vol 1 at p 923
[12] See also *MC Plumbing (Pvt) Ltd* v *Hualong Construction (Pvt) Ltd* HH 88/15 and *Lourenco* v *Raja Dry Cleaners & Steam Laundry Private Limited* 1984(2) ZLR 151 (S) 156 at 158.
[13] SC 5/18 at p 17

59. The nub of the above authority is that where a factual dispute arises regarding the time when the cause of action arose, then that dispute must be resolved through the hearing of oral evidence. The defendants could not therefore motivate their case for absolution based on the prescription of the matter before their evidence was placed on record in connection with that point.

60. As regards the main claim, the plaintiff sought, in the main a *declaratur* that the agreement of sale that he allegedly entered into with the defendants in May 2018 in connection with the property was valid and binding. The other ancillary claims which include the currency in which the purchase price ought to be paid are all dependant on the court finding that there was a valid and binding agreement of sale between the parties.

61. A valid agreement of sale comes into existence where there is *consensus ad idem* or a meeting of the minds in general, and more specifically on the subject matter of the sale (the *merx*) and the purchase price (the *pretium*). The written exchanges between the parties left the court in no doubt that the parties reached agreement on the sale of the property and the purchase price. The transaction may not have been handled with the same kind of refinement and particularity that typifies a transaction handled by lawyers. It however bears all the hallmarks of an agreement of sale. I say so for the following reasons.

62. The plaintiff submitted a bid of US$50,000.00 for the property on 20 April 2015. The bid was made to the first defendant. The same email referred to a conversation between the parties of 19 April 2015. On 20 October 2016, the plaintiff wrote to the first defendant expressing his delight that the defendants had decided to sell the property to him, and this was confirmed by Rachael Dube. The agreed purchase price was US$55,000.00, with a deposit of US$5,000.00. The plaintiff's only reservation was that his financiers required that the deposit be paid after the signing of the agreement of sale to facilitate the release of funds into his lawyers' trust account.

63. On 23 October 2016, the first defendant wrote an email to the plaintiff confirming that the sale would proceed subject to the plaintiff demonstrating good faith by bringing rent arrears up to date and the requisite guarantees confirming the availability of funds for the transaction. The email further stated that:

> "Once you have satisfied this condition, we will arrange for a formal Sale & Purchase Agreement to be prepared and the deposit of $5500 will become payable by you upon signing

> the agreement. This will satisfy your financier's requirements. I look forward to receiving your prompt response as it would be in all of our interests to get this matter finalised as soon as possible." (Underlining for emphasis)

64. The plaintiff responded to the first defendant's email through his own email of 25 October 2016. He confirmed having paid the outstanding rentals and rates for the period up to the end of October 2016. On 26 October 2016, the plaintiff wrote to the first defendant attaching the loan approval confirmation letter from the Pension Fund. On 15 December 2016, the plaintiff wrote an email to the defendants' legal practitioners attaching a copy of his driver's license and the email confirming the agreed purchase price of the property.

65. On 18 April 2018, the first defendant wrote to the plaintiff complaining about the lack of progress in the signing of the agreement of sale. This was despite the fact that the *"terms of the proposed sale were as stated in your email dated 20/10/16 i.e the purchase price USD 55,000.00 to be formalised through a signed Agreement of Sale acceptable to all parties and a 10% deposit to be paid into our solicitor Mr Chamutsa's trust account with the balance to be paid on transfer of title to yourself."*

66. The email concluded with a call on the plaintiff to finalise the signing of the agreement of sale and payment of the 10% deposit by 16 May 2018, failing which the defendants reserved their right to reconsider their position which may include the cancellation of what the first defendant called the **"implied agreement"**. The first defendant also invited the plaintiff to contact him, preferably through email, if any clarification was needed. This would also enable the first defendant to keep the other defendants informed of developments.

67. The email was followed up by another email of 7 May 2018, in which the first defendant reminded the plaintiff of the earlier email which had remained unanswered. The plaintiff responded through an email of 17 May 2018 in which he stated that he had engaged Mr Chamutsa and they had provisionally agreed on the draft agreement of sale which now awaited the personal details of the defendants. It was hoped that the signing of the agreement of sale would be concluded once the personal details were availed. Rachael Dube was also out of the country, and she was expected to return after 10 days.

68. The first defendant acknowledged receipt of the plaintiff's email on 20 May 2018. In the same email, which was also copied to Mr Chamutsa, he noted that he had received nothing from the lawyer in connection with the personal details that the lawyer was

awaiting in order to finalise the agreement of sale. He urged the lawyer to advise on the matter as soon as possible. There was also an email of 21 May 2018 from the fourth defendant to the first defendant and copied to the plaintiff, thanking the first defendant on the update of the sale of the house. The draft agreement of sale cited the first to fifth defendants as the sellers, duly represented by the Rachael Dube. The plaintiff was the purchaser.

69. It seems things went quite until around 23 July 2019, when the plaintiff received a letter from Chamutsa & Partners Legal Practitioners advising him of the increase in rentals to RTGS$1000.00 per month with effect from 1 July 2019. On **10 November 2019**, the first defendant wrote to the plaintiff advising that the owners of the property had decided to withdraw the property from sale. This is the communication that triggered events leading to these proceedings.

70. On 20 August 2020, Chamutsa & Partners wrote to the plaintiff advising him that the property was still up for sale. The plaintiff was given up to 30 September 2020 to exercise his option to purchase the property as the sitting tenant, failing which the sale was going to be opened to third parties.

71. The plaintiff responded to the letter through a letter from his own legal practitioners dated 22 September 2020. In their letter, the legal practitioners insisted that the plaintiff and the defendants had concluded a contract of sale, and the mere fact that there was no signed agreement did not detract from the fact that there was a valid sale. The plaintiff also argued that the payment of the purchase price was not necessary for the creation of the contract. For that reason, the plaintiff further argued that the defendants could not re-offer the same property as the original agreement remained extant.

72. I have given the above background to demonstrate the nature of the discussions and the exchanges that occurred between the parties. As already observed, it was clear that the parties had a meeting of the minds on the subject matter of the sale and the purchase price. The bone of contention is whether following all these exchanges between the parties, a valid contract of sale was concluded at some point. The defendants argued that the contract of sale never came into being, it being subject to certain conditions precedent that were never fulfilled. A condition precedent simply refers to an event or action that must occur or be satisfied before the contract becomes legally binding.

73. The plaintiff on the other hand argued that the contract of sale was for all intents and purposes fulfilled once the parties' reached agreement on the essential requirements of a

contract of sale. The failure to satisfy what the defendants termed conditions precedent did not detract from the fact that the contract had already been consummated. The plaintiff further argued that the defendants had, by their conduct of refusing to play ball by not providing personal details that were necessary to prepare the final agreement for signing, fictionally fulfilled the contract.

74. An agreement of sale, or any other agreement for that matter connotes an expression of the meeting of the minds of the contracting parties. Where a dispute arises regarding the existence of the contract, it is the duty of the court to decode the true intention of the parties as expressed by the parties through their conduct as well as their various correspondences. Any unexpressed intentions or unstated desires can only be resolved with reference to the *viva voce* evidence of the parties. The court must not be drawn into speculating what the parties meant to achieve once a factual dispute presents itself. The court must proceed with restraint lest it may end up imputing unexpressed intentions on the parties, when the parties themselves had no intention of proceeding in the manner attributed to them.

75. In his email of 18 April 2018 addressed to the plaintiff, the first defendant threatened to cancel what he referred to as the **"implied agreement"** between the plaintiff and the defendants. That alone confirmed that even the defendants themselves were unsure whether there was a valid agreement between themselves and the plaintiff, and if so the nature of that agreement.

76. It must be recalled that the law recognises the validity of an oral agreement in the same way that it recognises the validity of a written agreement. The only exception is in respect of those instances where an enactment specifically requires that certain agreements will only be valid when reduced to writing. It follows that the question about whether an agreement came into force between the plaintiff and the defendants herein can only be resolved after the court hears their respective accounts on their true intentions, as deduced from the various correspondence that were placed before the court.

77. The factual contestations about whether the alleged agreement was subject to some condition precedent or whether the defendants fictionally fulfilled the contract thereby creating a legally binding agreement must be resolved with reference to the parties' evidence. For that reason, the court determines that the plaintiff managed to establish a *prima facie* case which warrants that the defendants be put to their defence. The

defendants must be given an opportunity to explain their conduct as manifested in the various correspondences, before the court can reach a decision on the issue at hand.

DISPOSITION

Resultantly it is ordered that:

1. The defendants' application for absolution from the instance at the close of the plaintiff's case is hereby dismissed.
2. The trial shall resume on dates to be agreed upon by the parties in consultation with the Registrar.
3. Costs shall be in the cause.

MUSITHU J:……..

Mushonga Mutsvairo& Associates, plaintiff legal practitioners
Mundia & Mudhara, first to fifth defendants' legal practitioners